Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Thursday, October 22, 2020 at 6:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier gave a short introduction regarding the electronic Council meeting format and noted that the meeting was being live streamed on the Town's website.

Mayor Collier called the meeting to order at 6:05 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Closed Session (6:06 p.m.)

Authority to Hold a Closed Meeting and Related In-Camera Session

Moved by: R. Tyler Morin
Seconded by: L. Bower

That Council convene to a Closed Session pursuant to Section 239 (2) (k) of the *Municipal Act, 2001,* as amended, to discuss a position, plan, procedure, criteria or instruction to be applied to any negotiations carried on or to be carried on by or on behalf of the municipality or local board.

CARRIED

3.1 Confidential Negotiations

Open Meeting (7:08 p.m.)

Ratify Actions Taken In Closed Session

Ratify Directions from Closed Session

Moved by: A. Khan
Seconded by: L. Bower

That all directions approved in the Closed Session be ratified.

CARRIED

Motion: Durham Live Minister's Zoning Order (MZO)

Mayor Collier vacated the Chair. Deputy Mayor Dies assumed the Chair.

Mayor Collier introduced the motion and reviewed its contents. Members expressed their positions on the motion, concerns with the impact of the development on Ajax, and their frustration with the actions of the City of Pickering in the negotiations.

Moved by: Mayor Collier
Seconded by: Regional Councillor Crawford

WHEREAS in May 2020, the City of Pickering, on behalf of Pickering Developments Inc., sent a letter to the Minister of Municipal Affairs and Housing requesting a Minister's Zoning Order to accelerate, and expand, the Durham Live development;

AND WHEREAS the Region of Durham and the Town of Ajax identified a number of concerns with the proposed MZO, including sewer and sanitary capacity, future traffic impacts, required road infrastructure, environmental issues, and a lack of conditions, among other matters;

AND WHEREAS should the Province of Ontario support the MZO request, the Region and Town proposed that all parties undertake good faith negotiations to enter into an agreement with the developer to complete a Transportation Study and a Water and Sewer Study that would necessitate the construction of exclusive and non-exclusive works, that would correspond with the phasing of development;

AND WHEREAS on September 30th, members of Regional Council authorized the Region's Chief Administrative Officer to execute an agreement between the Region of Durham, the owner of the Durham Live lands and the impacted municipalities, including the Town of Ajax, in support of the Minister's Zoning Order in exchange for certain commitments;

AND WHEREAS after the Town entered into good faith negotiations with all the parties, on October 20 Pickering Council took purposeful action to eliminate the Town as a party to the development agreement for the MZO;

NOW THEREFORE BE IT RESOLVED:

THAT in the absence of good faith negotiations and a development agreement that protects the interests of all parties, including neighbouring Ajax taxpayers, Ajax Council

opposes the MZO for the Durham Live lands and requests that Minister Steve Clark not enact a Minister's Zoning Order for Durham Live;

AND THAT this motion be circulated to Premier Doug Ford, Hon. Steve Clark, Minister of Municipal Affairs and Housing, Hon. Rod Phillips, Minister of Finance, Hon. Peter Bethlenfalvy, President of the Treasury Board, Durham Region MPPs, the Region of Durham, and all Durham Region lower tier municipalities.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Councillor Khan, Regional Councilor Lee, Councillor Tyler Morin, Regional Councillor Dies

Opposed: None

Mayor Collier resumed the Chair.

4. Confirming By-Law

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 43-2020 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on October 22, 2020 be read a first, second and third time and passed.

CARRIED

5. Adjournment

Moved by: A. Khan
Seconded by: R. Tyler Morin

That the October 22, 2020 special meeting of the Council of the Town of Ajax be adjourned. (7:29 p.m.)

CARRIED

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Mayor

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Acting D-Clerk